

SYNTHETIC DOCUMENT - fictional content generated for testing. Not a real legal document.

SOFTWARE LICENSE AGREEMENT

This Software License Agreement ("Agreement") is entered into as of March 15, 2025 ("Effective Date"), by and between VectraCore Solutions, Inc., a Washington corporation with principal offices at 4821 Meridian Drive, Seattle, WA 98101 ("Licensor"), and NovaStream Technologies LLC, a Delaware limited liability company with a principal place of business at 910 Harborview Road, Bellevue, WA 98004 ("Licensee"). Licensor and Licensee may be referred to individually as a "Party" or collectively as the "Parties."

RECITALS

WHEREAS, Licensor is the owner and developer of certain proprietary software known as "V-Core Analytics Suite" ("Software");

WHEREAS, Licensee desires to obtain a license to use the Software, and Licensor is willing to grant such license under the terms and conditions set forth herein;

NOW, THEREFORE, in consideration of the mutual promises and covenants contained herein, the Parties agree as follows:

1. DEFINITIONS

1.1 "Documentation" means the user manuals, technical specifications, and other associated materials relating to the Software provided by Licensor.

1.2 "Licensed Use" means Licensee's internal business operations, including but not limited to data analysis, reporting, and visualization, subject to the terms of this Agreement.

1.3 "License Fee" means the monetary amounts payable by Licensee to Licensor pursuant to Section 4.

1.4 "Term" means the period beginning on the Effective Date and continuing until terminated as provided in this Agreement.

2. GRANT OF LICENSE

2.1 License Grant. Subject to the terms and conditions of this Agreement, Licensor hereby grants to Licensee a non-exclusive, non-transferable, limited license to use the Software and Documentation solely for Licensed Use during the Term.

2.2 Restrictions. Licensee shall not (a) modify, reverse engineer, decompile, or disassemble the Software except to the extent expressly permitted by applicable law; (b) sublicense, rent, lease, or distribute the Software; or (c) remove any proprietary notices or labels on the Software.

3. DELIVERY AND INSTALLATION

3.1 Delivery. Licensor shall deliver the Software and Documentation electronically within thirty (30) calendar days following the Effective Date.

3.2 Installation Assistance. Licensor shall provide reasonable remote installation assistance to Licensee within fifteen (15) days after delivery to ensure proper implementation.

4. PAYMENT TERMS

4.1 License Fee. Licensee shall pay Licensor a total License Fee of \$120,000 USD for the rights granted herein.

4.2 Payment Milestones. The License Fee shall be payable in installments based on certain milestones defined by project progress as reasonably determined by Licensor and Licensee jointly. The milestones and corresponding payments shall be invoiced generally as follows:

- (a) An initial payment following delivery and installation of the Software;
- (b) Interim payments tied to documented progress or acceptance of software components;
- (c) Final payment upon completion of Licensee-s successful integration and operational use of the Software.

4.3 Payment Timing. Licensee agrees to pay each invoiced amount within thirty (30) calendar days of receipt of such invoice. Licensor shall submit invoices referencing milestone achievement without delay, provided that such milestones have been reasonably assessed.

4.4 Late Payments. Any payments not made within thirty (30) calendar days may incur a late fee of one and one-half percent (1.5%) per month or the maximum permitted by law, whichever is less.

5. LICENSEE OBLIGATIONS

5.1 Use Restrictions. Licensee shall use the Software only as permitted by the license granted and shall not attempt to circumvent any technical measures or security features embedded in the Software.

5.2 Cooperation. Licensee shall provide reasonable cooperation and information necessary for Licensor to satisfy its obligations hereunder, including timely feedback on deliverables.

5.3 Compliance. Licensee shall ensure its employees, contractors, and agents comply with the terms of this Agreement.

6. TERM AND TERMINATION

6.1 Term. This Agreement shall commence on the Effective Date and continue for twenty-four (24) months unless terminated earlier in accordance with this Section.

6.2 Termination for Convenience. Either Party may terminate this Agreement upon sixty (60) days prior written notice to the other Party.

6.3 Termination for Cause. Either Party may terminate upon written notice if the other Party breaches any material term and fails to cure such breach within thirty (30) days after receipt of notice.

6.4 Effects of Termination. Upon termination, Licensee shall cease all use of the Software, return or destroy all copies, and certify in writing compliance within fifteen (15) days. Termination shall not relieve Licensee of its obligation to pay amounts owed as of the date of termination.

7. INTELLECTUAL PROPERTY RIGHTS

7.1 Ownership. Licensor retains all right, title, and interest in and to the Software and Documentation, including any modifications and derivative works.

7.2 Feedback. Any suggestions, improvements, or feedback Licensee provides to Licensor shall be the exclusive property of Licensor.

8. WARRANTY AND DISCLAIMER

8.1 Limited Warranty. Licensor warrants that the Software will perform substantially in accordance with the Documentation under normal use for ninety (90) days following delivery.

8.2 Disclaimer. EXCEPT AS EXPRESSLY PROVIDED IN SECTION 8.1, THE SOFTWARE IS PROVIDED "AS IS," AND LICENSOR DISCLAIMS ALL OTHER WARRANTIES, EXPRESS OR IMPLIED, INCLUDING MERCHANTABILITY, FITNESS FOR A PARTICULAR PURPOSE, AND NON-INFRINGEMENT.

9. LIMITATION OF LIABILITY

9.1 EXCEPT FOR DAMAGES ARISING FROM WILLFUL MISCONDUCT OR GROSS NEGLIGENCE, LICENSOR-S LIABILITY

SHALL NOT EXCEED THE AMOUNTS PAID BY LICENSEE UNDER THIS AGREEMENT.

9.2 IN NO EVENT SHALL LICENSOR BE LIABLE FOR ANY CONSEQUENTIAL, INCIDENTAL, SPECIAL, OR PUNITIVE DAMAGES.

10. CONFIDENTIALITY

10.1 Definition. "Confidential Information" means any non-public, proprietary, or confidential information disclosed by either Party.

10.2 Obligations. Each Party shall maintain Confidential Information in strict confidence and shall not disclose it to third parties except as necessary to perform this Agreement.

10.3 Exceptions. Confidential Information does not include information that is publicly known, rightfully received from a third party, or independently developed.

11. DISPUTE RESOLUTION

11.1 Negotiation. The Parties shall first attempt in good faith to resolve any dispute arising from this Agreement through negotiation.

11.2 Governing Law and Jurisdiction. This Agreement shall be governed by the laws of the State of Washington without regard to conflicts of law principles. The Parties submit to the exclusive jurisdiction of the King County Superior Court, case number 25-2-03456-7 SEA.

12. GENERAL PROVISIONS

12.1 Assignment. Licensee may not assign or transfer this Agreement without prior written consent of Licensor.

12.2 Entire Agreement. This Agreement constitutes the entire agreement between the Parties and supersedes all prior agreements and understandings.

12.3 Amendments. Amendments must be in writing and signed by authorized representatives of both Parties.

12.4 Notices. Notices shall be in writing and sent to the addresses stated above by certified mail or email with confirmation.

12.5 Severability. Any provision found invalid or unenforceable shall be severed, and the remainder shall continue in effect.

IN WITNESS WHEREOF, the Parties have executed this Agreement as of the Effective Date.

VectraCore Solutions, Inc.

By: _____

Name: Meredith L. Kane

Title: Chief Executive Officer

Date: March 15, 2025

NovaStream Technologies LLC

By: _____

Name: Daniel R. Morton

Title: Managing Member

Date: March 15, 2025